

Datum  
Date 08.05.2015  
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Sheet 1  
Feuille

Anmelde-Nr:  
Application 11 837 339.8  
No:  
Demande n°:

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The examination is being carried out on the **following application documents**

**Description, Pages**

1-141 as published

**Sequence listings, SEQ ID NO**

1-149 as published

**Claims, Numbers**

1-23 filed in electronic form on 12-11-2014

**Drawings, Sheets**

1-21 as published

1. The amendments filed with the letter dated 12-11-14 are considered to fulfill the requirements of Article 123(2) EPC. The examination was based on the amended version of the claims.

2. The objections under Article 84 EPC raised in the ESOP are considered to be overcome in the light of Applicant's argumentation and the amendments carried out.

3. A Third Party Observation (TPO) was filed on 08-01-2015. The objection was raised in particular concerning the subject-matter of present claim 22 relating to the use of wheat in a food product for medical purposes. It is alleged that the claimed subject-matter was already disclosed in the prior art and 7 exhibits from the Traditional Knowledge Database (TKD) have been filed.

In the TPO it is argued that the presently claimed food is not novel over said prior art and/or at least lacks an inventive step since the claims merely provide the optimization of a system which is known in the art and for which the general conditions are already disclosed.

The Applicant is asked to comment on the objections raised in the TPO.

4. The subject-matter of claims 15-18 and 22 would appear to lack clarity (**Article 84 EPC**).

From the present application it would appear that the technical effect of the present wheat grain lacking a certain amount of SBEII activity is the amount of amylose in said grain which is at least 50%.

The above claims relate to food ingredients or products comprising the present grain or meal thereof. However, if combined into a food product the said technical effect of the present grain or meal would not appear to become apparent any more. It appears to be simply a matter of mixing the food in order to arrive at a claimed food product using conventional grain or meal. For instance, a blend as claimed in claim 18 which comprises 10% of the present grain, meal or flour and the remaining 90% of wheat grain having an amylose content of lower than 50%, in terms of its amylose content cannot be distinguished from a composition comprising 100% of wheat grain having an amylose content of less than 50% but at a amylose level which is equal to the presently claimed composition. Thus, it does not become apparent from the said claims which technical problem is actually solved by the present grain, meal or flour when combined into a food product.

The Applicant is requested to file new claims which take account of the above comments.

In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the Applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages of the application as filed on which these amendments are based.